IN THE HIGH COURT OF KARNATAKA
AT BENGALURU

DATED THIS THE 18th DAY OF MARCH, 2026

BEFORE

THE HON'BLE MR. JUSTICE RAJENDRA KUMAR SHARMA

WRIT PETITION NO. 12847 / 2025

PETITIONER:

M/s Shree Infratech Developers Pvt. Ltd., No. 47, 3rd Cross, Koramangala, Bengaluru - 560 034, Represented by its Managing Director, Mr. Arvind Nair.

RESPONDENTS:

1. The State of Karnataka, Represented by its Principal Secretary, Department of Urban Development, Vidhana Soudha, Bengaluru - 560 001.

2. The Bruhat Bengaluru Mahanagara Palike (BBMP), Represented by its Commissioner, N R Square, Bengaluru - 560 002.

3. The Commissioner, Department of Stamps and Registration, Government of Karnataka, Bengaluru - 560 001.

This writ petition is filed under Articles 226 and 227 of the Constitution of India, praying to quash the impugned order dated 12.09.2025 passed by the 2nd Respondent - BBMP rejecting the petitioner's application for building plan sanction for a residential-cum-commercial complex at Survey No. 142/3, Whitefield, Bengaluru.

BACKGROUND OF THE CASE:

The petitioner, M/s Shree Infratech Developers Pvt. Ltd., applied to BBMP on 15.06.2025 for sanction of building plans for a G+8 storey residential-cum-commercial complex on a plot admeasuring 4,200 sq. ft. at Survey No. 142/3, Whitefield, Bengaluru. The project is valued at approximately Rs. 22 crores.

BBMP, vide its impugned order dated 12.09.2025, rejected the application citing: (i) non-compliance with the Revised Master Plan 2031 zoning regulations; and (ii) alleged encroachment of 1.2 metres into the road setback area. The petitioner submits that both grounds are factually incorrect and contrary to the documents submitted.

The petitioner further submits that the rejection has caused financial loss of Rs. 85 lakhs in preliminary project costs and is threatening the livelihoods of 240 construction workers already engaged on-site.

SUBMISSIONS:

Senior Advocate Mr. Suresh Rao, appearing for the petitioner, submitted that the impugned order is arbitrary, non-speaking, and violates the principles of natural justice as no opportunity of hearing was afforded before passing the rejection order. He relied upon the Supreme Court judgment in Maneka Gandhi v. Union of India (1978) 1 SCC 248.

The Government Pleader, Ms. Kavitha Reddy, submitted on behalf of Respondents 1 and 2 that the rejection was in accordance with the BBMP Building Bye-Laws 2003 and the Karnataka Municipal Corporations Act, 1976.

ORDER:

Having heard the learned counsel for both sides and having perused the documents on record, this Court is of the considered opinion that the impugned order warrants interference for the following reasons:

1. BBMP failed to follow the mandatory pre-decisional hearing procedure as required under Section 321 of the Karnataka Municipal Corporations Act, 1976. This is a clear violation of principles of natural justice.

2. The allegation of road setback encroachment is not supported by any survey report from the authorised government surveyor. BBMP has relied solely on an internal inspection note.

3. The Master Plan 2031 documents submitted by the petitioner prima facie indicate that the proposed construction is within permissible FAR limits for the zone.

IN VIEW OF THE ABOVE, THIS COURT PASSES THE FOLLOWING DIRECTIONS:

(i) The impugned order dated 12.09.2025 passed by the 2nd Respondent - BBMP rejecting the petitioner's building plan application is hereby QUASHED AND SET ASIDE.

(ii) The 2nd Respondent - BBMP is DIRECTED to reconsider the petitioner's building plan application dated 15.06.2025 afresh, after giving a reasonable opportunity of personal hearing to the petitioner, and shall pass a reasoned speaking order within a period of EIGHT (8) WEEKS from the date of receipt of a copy of this order.

(iii) The 1st Respondent - State of Karnataka, Department of Urban Development, is DIRECTED to depute a Joint Director-level officer to supervise the fresh review process and ensure compliance with the Master Plan 2031 zoning norms. A compliance report shall be submitted to this Court within TEN (10) WEEKS from today.

(iv) In the event the 2nd Respondent fails to comply with direction (ii) above within the stipulated time, the petitioner shall be at liberty to move this Court for further orders.

(v) The 2nd Respondent - BBMP shall bear the costs of this petition, quantified at Rs. 25,000/-, to be paid to the petitioner within FOUR (4) WEEKS from the date of this order.

(vi) The petitioner may approach the concerned authorities under the Karnataka Stamps Act, 1957, for any incidental relief regarding stamp duty on the project, within THIRTY (30) DAYS of receiving the fresh sanction order.

The writ petition is accordingly ALLOWED IN PART as above.

The Registry is directed to communicate this order to all the respondents forthwith.

Sd/-
(RAJENDRA KUMAR SHARMA)
JUDGE